

DPDP 2023

Digital Personal Data Protection Act, 2023

Digital Personal Data Protection Act (DPDP), 2023

User Query :

I gave my mobile number, email address, identification details and other personal information to an online service for account verification. A few months later, I learned that the company's database had been accessed by an unauthorized person and customer information was circulating online. The company knew about the incident but did not inform affected users for some time. What legal provisions may apply?

Job Id. :

qwen3-30b/Scenario 10/Digital Personal Data Protection Act (DPDP), 2023

Prepared by :

NyaySahayak

Date :

29 August 2026

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AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 8 (5) — Reasonable security safeguards

The Data Fiduciary must protect personal data in its possession/control by reasonable security safeguards.

Section 8 (6) — Personal data breach notification

On a personal-data breach, the Data Fiduciary must notify the Board and each affected Data Principal in the manner prescribed.

Section 13 — Right of grievance redressal

Relevant to grievance handling by the Data Fiduciary/Consent Manager.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 Sections 8(5) and 8(6) are the clearest DPDP provisions for security safeguards and breach notification. The facts expressly state unauthorised database access and delayed user notification.

✓ STRENGTHS & RIGHTS

1 The scenario directly identifies a personal-data security incident and delayed notice.

✗ RISKS & OBLIGATIONS

1 Keep the security-safeguard and breach-notification duties distinct from access/correction rights, and distinguish the current commencement status.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1. Current-law caveat (29 Aug 2026): the key substantive private-sector DPDP duties relevant to these scenarios are scheduled to commence on 13 May 2027 under the 13 Nov 2025 commencement notification. Until then, treat these mappings as doctrinal/prospective rather than currently enforceable duties.

2. As of 29 Aug 2026 these substantive duties are not yet in force; retain them as prospective/doctrinal mappings in the benchmark.
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